



CHAPTER 5.

An Act to amend the law of Scotland regarding the provision by education authorities of food and clothing to school children. [26th February 1942.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. Section six of the Education (Scotland) Act, 1908, is hereby repealed and in lieu thereof the following provisions shall have effect :

Provision as to supply of food and clothing to school children.
8 Edw. 7. c. 63.

- (1) An education authority may purchase and provide food for the purpose of supplying meals to children attending any school in their area, both on days when the school meets and on other days.
- (2) When it is brought to the notice of an education authority that a child attending a school in their area is unable by reason of lack of food or of clothing to take full advantage of the education provided, the education authority shall make such provision for the child out of the education fund as they deem necessary during such period while the child is attending school (including days when the school does not meet) as they may determine.
- (3) Where an education authority make provision for a child in pursuance of this section, they shall be entitled to recover from the parent of the child the expense thereby incurred or, if the authority are satisfied that the parent is unable to pay the whole of that expense, such part thereof, if any, as he is, in the opinion of the authority, able to pay.

Repeal.
4 & 5 Geo. 5.
c. 68.

2. The Education (Scotland) (Provision of Meals) Act, 1914, is hereby repealed.

Interpretation,
citation and
construction.

3.—(1) For the purposes of this Act—

- (a) a child on attaining the age of five shall, pending his admission to school, be deemed to be attending a school in the area of the authority in which he resides; and
- (b) a child for whose education it is the duty of an education authority under any enactment to make special provision shall be deemed to be attending a school in the area of that authority.

(2) This Act may be cited as the Education (Scotland) Act, 1942, and the Education (Scotland) Acts, 1872 to 1939, and this Act shall be construed as one and may be cited together as the Education (Scotland) Acts, 1872 to 1942.

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